

MIDNIGHT BUILDATHON OFFICIAL RULES

No purchase necessary. A purchase will not improve your chance of winning.

Please read these Official Rules (as defined below) carefully before entering the Contest (as defined below). By entering or otherwise participating in the Contest, each entrant ("Entrant", "you", "your" or, as applicable, "Winner") agrees to these Official Rules, which create a contract. Without limitation, such contract includes grants of rights and indemnities to Sponsor (as defined below) from you, a class action waiver and a limitation of your rights and remedies. Void where prohibited or restricted by law. Subject to all applicable federal, state and local laws and regulations.

Your participation in the Contest and use of this website are each governed by the Midnight Foundation Privacy Policy and related terms and conditions (collectively, the "**Midnight Terms**"), together with the following **Midnight Buildathon** Official Rules (the "**Official Rules**"), which incorporate the Midnight Terms by this reference. If any provision of the Official Rules conflicts with any provision of the Midnight Terms, then Official Rules will prevail with respect to the Contest and any prizes awarded in connection with the Contest.

Sponsor

This Contest is sponsored by Midnight Foundation, a Cayman Islands exempted foundation company limited by guarantee with its registered office at Harney's Fiduciary (Cayman) Limited, 4th Floor, Harbour Place, P.O. Box 10240, Grand Cayman KY1-1002, Cayman Islands ("**Sponsor**").

Event Details

Format: **virtual**

Dates: **August 5 - November 5, 2026**

The period is divided by Wave as follows:

Wave	Build Period	Judging Period	Reward
Wave 1	August 13 – September 2, 2026	September 2 – September 13, 2026	US\$3,500
Wave 2	September 13 – October 3, 2026	October 3 – October 13, 2026	US\$4,000
Wave 3	October 13 – November 2, 2026	November 2 – November 13, 2026	US\$5,000

Each Wave consists of a 20-day development period and a 10-day or 11-day judging period. Once each period ends, the next period begins automatically.

Website: <https://app.akindo.io/wave-hacks/jaMZjqPOBsLXvjdG>

Contest Description

The **Midnight Buildathon** (the "**Contest**") begins on 13:00 **August 13, 2026** Greenwich Mean Time ("**GMT**") and ends on 12:59 **November 13, 2026** GMT (the "**Contest Period**"). Following the judging period for each Wave, winner selection will be completed from among all eligible entries received during that Wave to select prize winners, as described in the Winner Selection and Notification section below. Entry in the Contest does not constitute entry into any other promotion, contest, or sweepstakes. By participating in the Contest, each entrant unconditionally accepts and agrees to comply with and abide by these Official Rules and the decisions of Sponsor, which will be final and binding in all respects. Certain restrictions may apply.

Contest Eligibility

This is an **open** event. **The Contest is open to all eligible individuals who register through <https://app.akindo.io/wave-hacks/jaMZjqPOBsLXvjdG>.** Eligible participants must be 18 years of age or older as of the date of entry and meet the eligibility requirements set forth in these Official Rules. All federal, state and local rules and regulations apply. Void where prohibited or restricted by law. The following parties are **not eligible to participate in the Contest or receive any prizes**:

- (a) individuals or entities located in, or holding an electronic wallet ("**wallet**") that has transacted in, any jurisdiction that is the subject of any sanctions administered or enforced by the U.S. Department of Treasury's Office of Foreign Assets Control, the United Nations Security Council, the European Union, His Majesty's Treasury's Office of Financial Sanctions Implementation or other relevant sanctions authority;
- (b) residents of Afghanistan, Belarus, Cuba, Iran, Iraq, North Korea, Russia, Syria, Venezuela, Yemen, Myanmar, Somalia, or Sudan; or
- (c) individuals who are participating in the Contest as a volunteer, judge or other privileged position.

The following parties are eligible to participate in the Contest but are **not eligible to win a prize**: Officers, directors and employees of Sponsor and its parent, subsidiaries, affiliates, distributors, retailers, sales representatives, advertising and promotion agencies (all such individuals and entities referred to in this sentence collectively, the "**Promotion Entities**"), and each of their immediate family members and/or people living in the same household.

Contest Tracks

The **Midnight Buildathon** features **1** distinct track, each focusing on different applications of privacy-preserving technology. **All projects must be net-new as of August 05**— no pre-existing code or projects are eligible. Teams may consist of up to **five (5) members**. The Midnight-related code newly developed or materially extended for the Contest, including the submitted Compact contract and the code reasonably necessary to evaluate its functionality, must be publicly available under the Apache License 2.0. Pre-existing or independently developed code may remain subject to its existing license.

Submission Rules:

- (a) Each project may only be submitted to **one (1) track** — projects cannot be submitted to multiple tracks;
- (b) Teams may submit **multiple different projects** across different tracks (If tracks are added later); however
- (c) Each team is **only eligible to win one (1) track prize**. If a team's projects are selected as winners in multiple tracks, the team must choose which single track prize to accept, and the runner-up in the other track(s) will be designated as the winner.

Track [1]: Build Privacy-First Apps on Midnight

This track is intended for anyone looking to build all kinds of applications using Midnight's ZK technology.

Participation Requirements

All registered participants must:

- (a) submit a link to the team's GitHub repository containing the project code and related files via your submission page on the AKINDO platform on or before the end of the Build period for the applicable Wave (the "**Submission Deadline**"). Only the version submitted by the applicable Submission Deadline will be considered for that Wave. Entrants may continue development after the Submission Deadline, but subsequent changes will not be considered in the evaluation of that Wave. Such subsequent changes may be submitted for consideration in a later Wave, subject to these Official Rules;
- (b) submit a GitHub repository, slide deck and video demonstration or pitch through the AKINDO platform by the applicable Submission Deadline;
- (c) **if requested by the judges, participate in a live presentation or interview at a time communicated to the Entrant in advance;**
- (d) ensure they have a stable internet connection and the necessary hardware and software to participate in the Contest remotely. The Promotion Entities are not responsible for any technical issues, connectivity problems, or equipment failures experienced by entrants during remote participation.

Winner Selection and Notification

All submissions will be evaluated based on the **Midnight Buildathon** Judging Rubric. The judging criteria include:

- **Engineering & Implementation (40%):** Evaluates whether the Compact contract compiles, includes private state management, and demonstrates understanding of Midnight's dual-ledger model. The repository should be well-organized with a clear

README. We encourage participants to tag their repos with relevant Midnight topics and include ecosystem attribution.

- **Quality Assurance & Reliability (15%):** Evaluates the presence of simulation and test files, whether test cases pass, and overall product stability under basic use.
- **Product & Vision (15%):** Evaluates the soundness of the idea, its connection to Midnight's core capabilities, and whether the scope and roadmap are realistic.
- **User Experience & Design (15%):** Evaluates whether the frontend is intuitive, behaves as expected, and connects to the contract for a functional end-to-end experience.
- **Communication (10%):** Evaluates the clarity and structure of the video presentation and slide deck.
- **Business Development & Viability (5%):** Evaluates target audience awareness, market potential, and adoption path.
- **Technical Gate:** If the submitted Compact contract does not compile, the project is automatically disqualified.
- **Eligible entries must meet all the following criteria:**
 - Each project must have at least one contract that compiles successfully, otherwise they are disqualified.
 - Code cannot be a fork, or copy of an existing project unless it extends existing functionality.
 - The project's open-source repository must include the *midnightntwrk* label on GitHub.
 - Participants must provide a Github repo, slide deck presentation, and a video demo/pitch.

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Participants may view the points assigned by the judges by the end of the judging period for each Wave.

Prizes

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The development grant pool allocated to each Wave will be distributed among eligible submissions in proportion to the points they receive during the judging process for that Wave. Development grants will be made available for distribution as soon as reasonably practicable following the end of the judging period for the applicable Wave, subject to eligibility verification, required compliance checks and receipt of the applicable Wave Grant Pool.

Teams selected by the judges will be eligible to participate in the Build Club. All team members of each selected team will have access to the Build Club program.

About Midnight Build Club: Build Club is Midnight's 8-week part-time educational program for high-potential idea-stage projects. All members of winning teams will have access to the program. Successful teams will learn from senior experts in software development, business development, and marketing strategy. Through this program, participating teams are granted an extensive suite of tools and resources and are guided through validating and refining their idea,

developing a robust foundation for their startup. At the end of the program, teams have the opportunity to pitch to Midnight's network of investors for funding and acceptance into the Midnight Accelerator Program.

Approximate Retail Value ("ARV"): The total ARV of all Prizes is **12,500 USD** plus the value of the Build Club program. Actual value may vary based on market conditions. Winners are responsible for all federal, state, local, sales and income taxes associated with acceptance of any Prize. Any additional costs not specified are the responsibility of winners.

Entry Conditions and Code of Conduct

Entries cannot:

- (a) be sexually explicit or suggestive, indecent, violent or derogatory of any ethnic, racial, gender, religious, professional or age group, profane or pornographic, contain nudity or any dangerous activity;
- (b) promote alcohol, illegal drugs, tobacco, firearms/weapons (or the use of any of the foregoing), any activities that may appear unsafe or dangerous, or any particular political agenda or message;
- (c) be obscene or offensive, endorse any form of hate or hate group or use any obscenity;
- (d) contain trademarks, logos or trade dress owned by others, or advertise or promote any brand or product of any kind other than Sponsor and its products, or contain any personal identification, such as license plate numbers, personal names (other than your name), e-mail addresses or street addresses;
- (e) contain copyrighted materials owned by others (including but not limited to music, photographs, sculptures, paintings and other works of art or images published on or in websites, television, movies or other media) or confidential or proprietary information or data of others, in either case without written permission and legal releases (which permission and releases must include, without limitation, the ability to grant the licenses and permissions in these Official Rules to Sponsor), a copy of which you will provide to Sponsor upon request;
- (f) contain materials embodying the names, images, likenesses, photographs or other indicia identifying any person, living or dead, without written permission and legal releases (which permission and releases must include, without limitation, the ability to grant the licenses and permissions in these Official Rules to Sponsor), a copy of which you will provide to Sponsor upon request;
- (g) depict, and cannot itself be in, violation of any law;
- (h) violate, misappropriate or otherwise infringe upon the copyrights, trademarks, rights of privacy, rights of publicity or other intellectual property or other rights of any person or entity;
- (i) defame, misrepresent or contain disparaging remarks about Sponsor, its affiliates or any of its or their products, or other people, products or companies or communicate messages or images inconsistent with the positive images and/or goodwill to which Sponsor associates; or
- (j) contain or introduce any viruses, worms, spyware, back door, time bomb, Trojan Horse, drop dead device or other malicious content or any code or instructions that permit or encourage unauthorized access to Sponsor's or any party's computers, servers, systems, equipment, machines, networking, routing equipment, peripherals and the

physical and wireless connections between them all, or to disable or erase software, hardware or data in or on any of the foregoing or to perform any other similar type of function or other unauthorized function or to operate in an unauthorized manner.

By submitting an entry, you represent, warrant and covenant that: (a) your entry is your original work; (b) your participation in the Contest will not be in violation of any law or regulation; (c) you will not attempt any attacks against Sponsor's employees, users or infrastructure; (d) you will neither attempt to view, modify or damage data belonging to Sponsor or any other individual or entity nor attempt to access the accounts and data of the foregoing; (e) publication of your participation and entry in or on any media will not violate, misappropriate or otherwise infringe on the rights of any person or entity; (f) you meet the eligibility requirements set forth in these Official Rules. **All projects must be created entirely during the Contest Period beginning August 05, 2026 — no pre-existing projects, previously written code, or work begun before August 05, 2026 is permitted.**

Entry must be made by the entrant, whether individually or together with other individuals comprising a team. If entries are submitted by a team, then all members of the team must individually register to participate in the Contest. Entries made by any other individual, any other individual who is not a member of a pre-identified team or any entity, and/or originating at any other website or email address, including but not limited to commercial Contest subscription notifications or entering service sites, will be declared invalid and disqualified for this Contest. Tampering with the entry process or the operation of the Contest, including but not limited to the use of any device to automate the entry process or use of multiple Discord and/or Telegram accounts, or any other method, to submit duplicate entries, misrepresent an entrant's identity or otherwise circumvent these Official Rules is prohibited and any entries deemed by Sponsor, in its sole discretion, to have been submitted in this manner will be void. In the event a dispute regarding the identity of the individual who actually submitted an entry cannot be resolved to Sponsor's satisfaction, the affected entry(ies) will be deemed ineligible.

The Promotion Entities will not be responsible for incorrect or inaccurate entry information whether caused by Internet users or by any of the equipment or programming associated with or utilized in the Contest or by any technical or human error which may occur in the processing of the entries in the Contest. The Promotion Entities assume no responsibility or liability for any error, omission, interruption, deletion, theft or destruction, or unauthorized access to, or alteration of entries. Entries will be deemed made by the authorized account holder(s) of the AKINDO platform account and any Discord or Telegram account identified or used in connection with the entry. In the event of a dispute, the potential grant recipient(s) may be required to provide proof that they are the authorized holder(s) of the AKINDO platform, Discord or Telegram account.

Entrants must conduct themselves in a reasonable manner, maintaining a friendly and polite demeanor to the Promotion Entities, members of the press and to other entrants. Entrants must refrain from using vulgar or offensive language, including language that is profane, sexually explicit, lewd, suggestive, unnecessarily violent or derogatory of any ethnic, racial, gender, religious, professional or age group. Abusive behavior, including harassment and threats, is prohibited. Physical abuse, fighting or any threatening action or threatening language, directed at any entrant, official or any other person is prohibited. Any action designed to disrupt another entrant's ability to participate in the Contest is prohibited.

Sponsor will have the right to disqualify any entries and entrants that Sponsor has determined, in its sole and exclusive opinion, fail to adhere to these Contest Official Rules or expose Sponsor to any unacceptable degree of technical, legal or financial risks or problems or is

otherwise deemed inappropriate. Sponsor's decisions are final and binding with respect to all matters relating to this Contest.

Privacy

To participate in the Contest and/or receive prizes, entrants and winners (as applicable) will be required to supply certain information about themselves on the Contest application entry page and the Contest winner verification page. Sponsor has specified on these pages what information is mandatory to participate in the Contest. This information will be used by Sponsor for the purposes of administering the Contest, and may be shared with its affiliates, subsidiaries, advertising, promotion and fulfillment agencies, legal advisors and service providers. Except as otherwise contemplated in these Official Rules, and to the extent entrants or winners may otherwise elect at the time of entry or winner verification, personal information collected in connection with the Contest will be used in accordance with Sponsor's Privacy Policy, located here: <https://midnight.network/static/privacy-policy.pdf>.

Publicity Release

Except where prohibited or restricted by law, your participation in the Contest and, if applicable, your acceptance of any portion of a prize, constitutes your agreement, permission and consent for the Promotion Entities and any of their designees to use, publish, copy, broadcast, display, distribute, use, edit, translate, alter, combine with other material, reuse and adapt, in their sole discretion, any or all portions of the details of your entry and participation, your full name, city and province or territory of residence, biographical information, photographs or other likenesses, pictures, portraits, video, voice, testimonials and statements made by you regarding the Contest, the prizes or otherwise, worldwide and in perpetuity for any and all purposes, including, but not limited to, advertising, publicity, trade and promotion on behalf of the Promotion Entities, in any and all forms of media, now known or hereafter devised, including, but not limited to, print, TV, radio, electronic, cable or World Wide Web (including, without limitation, the Promotion Entities' website(s) or other social media pages and/or on certain third-party websites), without further limitation, restriction, compensation, notice, review or approval.

General Release and Limitation of Liability

Entrants agree that the Promotion Entities: (a) shall not be responsible or liable for, and are hereby released from, any and all costs, injuries, losses or damages of any kind, due in whole or in part, directly or indirectly, to participation in the Contest or any Contest-related activity, or from entrants' acceptance, receipt, possession and use or misuse of any prize; and (b) have not made any warranty, representation or guarantee express or implied, in fact or in law, with respect to any prize, including, without limitation, to such prize's quality or fitness for a particular purpose. The Promotion Entities assume no responsibility for any damage to an entrant's, or any other person's, computer system which is occasioned by accessing the websites necessary to participate in the Contest and/or to accept a prize (collectively, "Website"), or otherwise participating in the Contest, or for any computer system, phone line, hardware, software or program malfunctions, or other errors, failures, delayed computer transmissions or network connections that are human or technical in nature.

Without limiting the generality of the foregoing, the Promotion Entities are not responsible for incomplete, illegible, misdirected, misprinted, late, lost, damaged, stolen or postage-due prize

notifications; or for lost, interrupted, inaccessible or unavailable networks, servers, satellites, Internet service providers, websites or other connections; or for miscommunications, failed, jumbled, scrambled, delayed or misdirected computer, telephone or cable transmissions; or for any technical malfunctions, failures, difficulties or other errors of any kind or nature; or for the incorrect or inaccurate capture of information, or the failure to capture any information.

Sponsor reserves the right in its sole discretion to disqualify any individual who is found to be tampering with the entry process or the operation of the Contest or the Website, to be acting in violation of these Official Rules, or to be acting in an unsportsmanlike or disruptive manner, or with the intent to disrupt or undermine the legitimate operation of the Contest, or to annoy, abuse, threaten or harass any other person, and the Promotion Entities reserve the right to seek damages and other remedies from any such person to the fullest extent permitted by law. No mechanically reproduced, illegible, incomplete, forged, software-generated or other automated multiple entries will be accepted.

Sponsor reserves the right to modify, extend, suspend or terminate the Contest, without prior notice, if it determines, in its sole discretion, that the Contest is technically impaired or corrupted or that fraud or technical problems, failures or malfunctions or other causes beyond Sponsor's control have destroyed or severely undermined or to any degree impaired the integrity, administration, security, proper play or feasibility of the Contest as contemplated herein.

In the event an insufficient number of eligible entries are received relative to the prizes to be awarded or Sponsor is prevented from awarding prizes or continuing with the Contest as contemplated in these Official Rules by any event beyond its control, including but not limited to fire, flood, natural or man-made epidemic of health or other means, earthquake, explosion, labor dispute or strike, act of God or public enemy, satellite or equipment failure, riot or civil disturbance, terrorist threat or activity, war (declared or undeclared) or any federal state or local government law, order, or regulation, public health crisis, order of any court or jurisdiction, venue unavailability, travel restrictions, or other cause not reasonably within Sponsor's control (each a **"Force Majeure"** event or occurrence), then subject to any governmental approval which may be required, Sponsor shall have the right to modify, suspend, extend or terminate the Contest. If the Contest or any applicable Wave is terminated before its scheduled end date, Sponsor may evaluate eligible submissions received before the termination and allocate the applicable Wave Grant Pool, in whole or in part, based on the judging criteria, the stage reached by the applicable Wave and the circumstances giving rise to the termination. If a fair and reasonable evaluation cannot be completed, Sponsor may cancel or reduce the applicable Wave Grant Pool, subject to applicable law. Sponsor's determination shall be final and binding.

Only the type and quantity of prizes described in these Official Rules will be awarded. These Official Rules cannot be modified or amended in any way except in a written document issued in accordance with law by an authorized representative of Sponsor. The invalidity or unenforceability of any provision of these Official Rules will not affect the validity or enforceability of any other provision. If any provision is determined to be invalid or otherwise unenforceable or illegal, these Official Rules will otherwise remain in effect and will be construed in accordance with their terms as if the invalid or illegal provision were not contained herein.

Any attempt by an entrant or any other individual to deliberately damage any website or undermine the legitimate operation of the Contest is a violation of criminal and civil laws and should such an attempt be made, Sponsor reserves the right to seek damages from any such individual to the fullest extent permitted by law. Each entrant will indemnify and hold harmless the Promotion Entities from any claims arising out of or relating to any breach of these Official Rules.

General Conditions

Without limiting the foregoing, everything regarding this Contest, including all information provided through the AKINDO platform, Discord or Telegram, as applicable and all prizes, is provided "as is" without warranty of any kind, either express or implied, including but not limited to, the implied warranties of merchantability, fitness for a particular purpose or non-infringement. Some jurisdictions may not allow the limitations or exclusion of liability for incidental or consequential damages or exclusion of implied warranties so some of the above limitations or exclusions may not apply to you. Check your local laws for any restrictions or limitations regarding these limitations or exclusions.

Governing Law and Dispute Resolution

These Official Rules and all disputes arising out of or in connection with the Contest shall be governed by and construed in accordance with the laws of England and Wales, without regard to conflict of law principles.

Any dispute, controversy or claim arising out of or relating to the Contest, these Official Rules, the awarding or redemption of any prize, or the scope or applicability of this agreement to arbitrate (collectively, "**Disputes**"), shall be resolved exclusively by final and binding arbitration administered by the London Court of International Arbitration (LCIA) in accordance with the LCIA Rules. The arbitration shall be conducted before a sole arbitrator, seated in London, England, and conducted in English. The arbitrator shall apply the laws of England and Wales consistent with the Arbitration Act 1996 and applicable limitation periods. The arbitrator shall not have the power to award punitive damages. All Disputes must be brought in the parties' individual capacities and not as a class, consolidated or representative action; the arbitrator may not consolidate the claims of multiple parties. If the class action waiver in this paragraph is found invalid or unenforceable, the entirety of this arbitration provision shall be null and void. If any other part of this arbitration provision is found invalid, the remainder shall continue in full force and effect. For matters not subject to arbitration, the parties irrevocably submit to the exclusive jurisdiction of the courts of England and Wales sitting in London.

Social Media Disclosure

This Contest is in no way sponsored, endorsed or administered by, or associated with Facebook, TikTok, Reddit, Instagram, X (formerly known as Twitter), YouTube, Google or any other social media or similar platform where this Contest may be promoted, advertised or otherwise used to disseminate information relating to the Contest. You understand that all information is being provided to Sponsor and not to Facebook, TikTok, Reddit, Instagram, X (formerly known as Twitter), YouTube, Google or any other social media where this Contest may be promoted, advertised or otherwise used to disseminate information relating to the Contest. The Promotion Entities are not responsible for practices, terms or actions taken by any of these or other social media and web services sites. You understand that you are required to comply with terms and conditions of those social media platforms.

Winner's List / Official Rules

To obtain a copy of the winners list, send a request directly to support@midnight.network. T
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